
THE MCBRIDE TEAM

at CENTURY 21 Magnolia

AGREEMENT

Independent Contractor

Between Team and Agent

This Independent Contractor Agreement (the "Agreement") is made and entered into as of _____ (the "Effective Date") between **The McBride Team at CENTURY 21 Magnolia** (the "Team"), operating under CENTURY 21 Magnolia (the "Brokerage"), and _____ (the "Agent"). The Team and Agent are each a "Party" and collectively the "Parties."

1. Parties, Brokerage Relationship, and Purpose

1.1 CENTURY 21 Magnolia is the broker of record for all real estate transactions referenced in this Agreement. All commissions are paid through the Brokerage, which authorizes the Team to establish and administer internal compensation structures consistent with Georgia Real Estate Commission ("GREC") rules governing real estate teams and independent contractor relationships.

1.2 Agent is engaged as an independent contractor and not as an employee, partner, joint venturer, or agent of the Team or Brokerage for any purpose other than as expressly stated herein. Agent is solely responsible for self-employment taxes, licensing fees, MLS dues, E&O contributions allocated to Agent, and any other expenses not expressly assumed by the Team in writing.

1.3 Nothing in this Agreement is intended to conflict with the franchise agreement between the Brokerage and Century 21 Real Estate LLC, GREC rules, or applicable law. In the event of conflict, the controlling authority prevails and the remainder of this Agreement remains in force.

2. Term and Renewal

2.1 Initial Term. This Agreement begins on the Effective Date and continues for one (1) year.

2.2 Renewal. The Agreement automatically renews for successive one-year terms unless either Party gives written notice of non-renewal at least thirty (30) days before the then-current term ends.

2.3 Termination. Either Party may terminate this Agreement as described in Section 10 (Termination and Commission Payouts). Termination must be in writing to be effective.

3. Lead Definitions

Accurate lead classification is the foundation of this Agreement. The following definitions control all compensation, ownership, and post-separation obligations.

3.1 TEAM LEAD

“Team Lead” means any prospect, client, lead, referral, or contact that satisfies any one or more of the following:

- Was generated through, paid for, routed by, or attributable to a Team or Brokerage lead source, including without limitation Zillow Flex, OpCity / Realtor.com, Google Ads, Ylopo, YouTube, Facebook/Instagram ads, the Team website, Team SEO content, Team social media accounts, Team email marketing, Team referral partners, Team open houses, Team signage, or any successor or replacement platform of any of the foregoing;
- Was introduced to Agent through the Team’s CRM (Follow Up Boss) or any other Team system, dashboard, or distribution mechanism, regardless of who first spoke with the contact;
- Was a past client of the Team or of any Team member, or a sphere or database contact of any other Team member;
- Was acquired by the Team through purchase, assignment, or referral from another agent, brokerage, vendor, or relocation source; or
- Cannot be affirmatively documented by Agent as a Personal Lead under Section 3.2 and recorded on Schedule A.

3.2 PERSONAL LEAD

“Personal Lead” means a prospect or client that (a) originated solely from Agent’s pre-existing personal sphere, family relationships, or self-funded marketing predating Agent’s engagement with the Team; (b) was disclosed in writing to and acknowledged by the Team Lead at onboarding via the Pre-Existing Sphere List attached as Schedule A; and (c) has had no material contact, touch, or activity through any Team lead source or system. Any contact not affirmatively documented on Schedule A is presumed to be a Team Lead, and Agent bears the burden of rebutting that presumption with contemporaneous written evidence.

3.3 DATABASE

“Database” means the Team’s CRM (Follow Up Boss), contact lists, lead routing rules, transaction histories, communication logs, call recordings, text logs, email logs, smart lists, tags, pipeline stages, notes, scripts, sequences, templates, automations, vendor lists, and any derivative or aggregated data, in any format, on any device, whether stored on Team systems or replicated elsewhere.

4. Commission Structure

All commissions are paid by the Brokerage and then administered through the Team's internal compensation schedule. Each transaction is subject to the 6.5% Century 21 royalty, any applicable referral or relocation fees, E&O contribution, and any pre-closing deductions authorized by the Brokerage. Splits below are calculated on the commission remaining after those deductions.

4.1 TEAM LEADS

- Referral fee (if applicable): 25%–40% off the top, depending on the lead source.
- Century 21 royalty: 6.5%.
- Split after fees: 50% Agent / 50% Team. This split is fixed and does not change with production.

4.2 PERSONAL LEADS – TIERED PRODUCTION SCHEDULE

Personal Leads are paid on a rolling 12-month production basis, evaluated monthly:

TIER	PERSONAL CLOSINGS (ROLLING 12 MONTHS)	AGENT SPLIT	TEAM SPLIT
Tier 1	0–11 units	50%	50%
Tier 2	12–24 units	60%	40%
Tier 3	25–49 units	70%	30%
Tier 4	50+ units	80%	20%

4.3 Tier Recalculation. Tiers are recalculated on the first business day of each month using the trailing 12-month closing history. A tier change is applied prospectively to contracts that go binding after the recalculation date; pending transactions stay on the tier in effect when they go under contract.

4.4 Lead Classification Disputes. The Team Lead has final authority to classify any lead as Team or Personal based on the definitions in Section 3 and the contents of Schedule A. If a contact later proves to have been a Team Lead under Section 3.1 (for example, a prior CRM record, prior Team touch, or attribution to a paid source), the Team may retroactively reclassify the lead and adjust commissions accordingly, including by clawback against future commissions.

4.5 Adjustment Right. The Team reserves the right to adjust fee, royalty, split, or tier structures upon thirty (30) days' written notice. Adjustments apply prospectively to transactions going under contract after the effective date of the change.

5. Performance Standards

Agent agrees to maintain professional standards consistent with the Team's brand and with Zillow Flex performance requirements.

5.1 ZILLOW FLEX METRICS

- 80% call answer rate
- 70% appointment set rate
- 30% show rate
- 10%+ conversion rate

5.2 CRM AND ACCOUNTABILITY

- Daily management of Follow Up Boss
- Smart Lists cleared daily
- Consistent documentation of all communication and notes
- Attendance at scheduled Team meetings, trainings, and one-on-ones

5.3 MINIMUM PRODUCTION

Agent shall close a minimum of twenty-four (24) transactions per rolling 12-month period. Production is reviewed monthly. Failure to meet minimum production or Zillow Flex metrics for two (2) consecutive review periods constitutes a material breach of this Agreement and triggers the review process in Section 6.

6. Performance Review and Discipline

6.1 Step One – Written Warning. Written notice of deficiencies and a thirty (30) day improvement plan.

6.2 Step Two – Probation. A thirty (30) day probationary period with weekly accountability check-ins, reduced or suspended lead distribution, and required attendance at training sessions designated by the Team Lead.

6.3 Step Three – Termination. If Agent does not achieve measurable improvement during probation, the Team may terminate this Agreement for cause.

6.4 Immediate Termination for Cause. The Team may terminate immediately and without going through Steps One through Three for: license suspension or revocation, GREC violation, fraud or dishonesty, material breach of Sections 7–10, breach of confidentiality, theft of Team property, or conduct that endangers a client or damages the Brokerage.

7. Branding, Marketing, and Intellectual Property

7.1 Brand Compliance. All marketing, signage, business cards, social media profiles, listing media, video content, and digital advertising must use the Team's approved brand standards, colors, logos, and templates and must clearly identify CENTURY 21 Magnolia as the Brokerage.

7.2 Permitted Attribution. Agent may advertise under Agent's own name provided the marketing includes the phrase "with The McBride Team at CENTURY 21 Magnolia" in a manner consistent with the Team brand guide.

7.3 Unauthorized Marketing. Agent shall not publish marketing or branding that is unapproved, that misrepresents Agent's relationship with the Team or Brokerage, or that violates GREC advertising rules or Century 21 franchise standards.

7.4 Assignment of Marketing Work Product. Agent hereby irrevocably assigns to the Team all right, title, and interest, including all copyright, in and to any marketing assets, photographs, videos, graphics, written content, templates, automations, listing descriptions, scripts, and similar work product created during or in connection with Agent's engagement with the Team, whether created by Agent alone or with others. To the extent any such work cannot be assigned, Agent grants the Team a perpetual, worldwide, royalty-free, sublicensable, exclusive license to use it. Agent shall execute any further documents reasonably necessary to perfect this assignment.

7.5 No Use Post-Separation. After separation, Agent shall not use, reproduce, or distribute any Team marketing asset, brand element, or template, and shall remove all Team-branded materials from personal social media, websites, signage, and business cards within seven (7) days of separation.

8. Confidentiality and Trade Secrets

8.1 Confidential Information. Agent acknowledges that during engagement, Agent will have access to the Team's confidential information, including the Database, scripts, sequences, training materials, lead routing rules, vendor relationships, financial performance data, compensation structures, conversion data, client preferences and histories, and other proprietary information (collectively, "Confidential Information").

8.2 Trade Secret Designation. The Parties agree that the Database, lead conversion scripts and sequences, smart lists, training materials, vendor lists, and compensation structures constitute trade secrets under the Georgia Trade Secrets Act of 1990, O.C.G.A. § 10-1-760 et seq. Agent acknowledges that misappropriation of trade secrets entitles the Team to injunctive relief, actual damages, exemplary damages, and attorneys' fees as provided by statute.

8.3 Non-Disclosure. Agent shall not, during or after the term of this Agreement, disclose, copy, transmit, screenshot, photograph, transcribe, export, replicate, post, or otherwise use any Confidential Information except as strictly necessary to perform Agent's duties for the Team. The confidentiality obligation in this Section continues indefinitely as to trade secrets and for five (5) years after separation as to other Confidential Information.

8.4 Reputation and Conduct. Agent shall represent the Team and Brokerage in a professional and favorable manner at all times. For a period of two (2) years following separation, Agent shall not make any public statement, post, review, or communication that disparages or is reasonably likely to damage the reputation of the Team, the Brokerage, or any of their members, employees, or contractors. This Section does not

restrict truthful statements made under legal compulsion or to a governmental or regulatory authority.

9. Lead Ownership, Non-Solicitation, and Non-Recruitment

This Section is the heart of the Agreement. Agent acknowledges that the Team has invested, and continues to invest, substantial money, time, and goodwill into generating, nurturing, and converting leads, and that the protections in this Section are reasonable and necessary to protect the Team's legitimate business interests, including its trade secrets, confidential information, customer relationships, and goodwill.

9.1 EXCLUSIVE OWNERSHIP

All Team Leads, all entries in the Database, all derivative data, and all customer relationships generated through Team Leads are the exclusive property of The McBride Team. Agent acquires no ownership, license, residual, or beneficial interest in any Team Lead, Database entry, or customer relationship by reason of working a lead, closing a transaction, building rapport with a contact, or otherwise. Closing a transaction does not convert a Team Lead into a Personal Lead.

9.2 NON-SOLICITATION OF TEAM LEADS AND CLIENTS

For a period of twenty-four (24) months following separation, Agent shall not, directly or indirectly, individually or on behalf of any other person or entity:

- Solicit, contact, communicate with, market to, accept business from, or provide real estate brokerage services to any Team Lead or any past client of the Team;
- Use any Team Lead information, contact information, or Database content for any purpose; or
- Induce or attempt to induce any Team Lead, past client, or referral source of the Team to terminate, reduce, or divert business away from the Team.

This restriction applies within Columbia County, Georgia, and any county whose boundary falls within a fifty (50) mile radius of the Team's principal office in Columbia County, Georgia. The Parties stipulate this geographic scope reasonably corresponds to the territory in which the Team actively conducts business and has goodwill.

9.3 NON-RECRUITMENT

For a period of twenty-four (24) months following separation, Agent shall not, directly or indirectly: (a) solicit, recruit, hire, engage, or attempt to induce any current Team member, employee, contractor, vendor, transaction coordinator, ISA, or assistant, or any such person who was so engaged within the twelve (12) months preceding separation, to leave the Team, reduce engagement with the Team, or compete against the Team; or (b) assist any third party in doing so.

9.4 RETURN AND DELETION OF PROPERTY

Within seventy-two (72) hours of separation, Agent shall:

- Return all Team property, including devices, signage, lockbox keys, marketing materials, files, and physical items;
- Surrender all credentials and access to CRM, email, social media accounts, MLS sub-logins, paid platforms, shared drives, and any other Team system;
- Permanently delete from all personal devices, cloud accounts, email accounts, phones, tablets, and computers any Team contact data, Database export, script, template, sequence, training material, or marketing asset; and
- Deliver to the Team Lead a signed written certification that Agent has fully complied with this Section.

Agent shall not, at any time during or after the term of this Agreement, export, screenshot, photograph, transcribe, forward to personal email, sync to personal cloud storage, or otherwise duplicate any portion of the Database or Confidential Information.

9.5 TOLLING

If Agent violates any provision of this Section 9, the restricted periods shall be tolled and shall not run during the period of the violation. The restricted periods resume only upon Agent's full cure of the violation or upon order of a court of competent jurisdiction.

9.6 ACKNOWLEDGMENT OF REASONABLENESS

Agent acknowledges that: (a) Agent's position with the Team involves access to Confidential Information, trade secrets, and substantial customer goodwill; (b) Agent qualifies as a person from whom the Team may lawfully obtain restrictive covenants under the Georgia Restrictive Covenants Act, O.C.G.A. § 13-8-50 et seq., including as a person performing the duties of a key employee, professional, or person with selective or specialized skills; (c) the duration, geographic scope, and scope of activity of the restrictions in this Section are reasonable and necessary to protect the Team's legitimate business interests; and (d) Agent has received valuable consideration for these restrictions, including access to leads, training, the Database, and the compensation structure in Section 4.

10. Termination and Commission Payouts

10.1 VOLUNTARY TERMINATION BY AGENT

Agent may terminate this Agreement by delivering written notice to the Team Lead. The financial treatment of pending transactions depends on the notice given:

- **Two (2) weeks' written notice or more:** transactions binding on or before the effective date of separation that close within thirty (30) days of separation are paid at Agent's standard split. Transactions that close more than thirty (30) days after separation are paid at thirty percent (30%) of Agent's otherwise-applicable split, with the remainder retained by the Team as a Cost Recovery Fee (defined in Section 10.3).

- **Less than two (2) weeks' written notice (including no notice):** all pending commissions are paid at ten percent (10%) of Agent's otherwise-applicable split, with the remainder retained by the Team as a Cost Recovery Fee under Section 10.3.

10.2 TERMINATION BY TEAM

If the Team terminates Agent for cause under Section 6.4, pending commissions are paid at ten percent (10%) of Agent's otherwise-applicable split. If the Team terminates Agent without cause, pending transactions closing within thirty (30) days of separation are paid at Agent's standard split.

10.3 COST RECOVERY FEE – LIQUIDATED DAMAGES

Agent acknowledges that the Team incurs substantial pre-closing costs per transaction, including lead acquisition (Zillow Flex, OpCity, Ylopo, paid advertising, and similar sources), CRM and platform subscriptions, training, transaction coordination, marketing, and administrative support, and that calculating exact damages from a no-notice or for-cause separation is impractical. The reduced payout in Sections 10.1 and 10.2 is therefore a Cost Recovery Fee that represents the Parties' reasonable, good-faith estimate of the Team's actual costs and lost investment, and is not a penalty.

10.4 CONDITIONS ON ALL PAYOUTS

All payouts under this Section are subject to: (a) final Brokerage approval and applicable Brokerage policies; (b) the 6.5% Century 21 royalty; (c) any referral or relocation fee obligations; (d) any chargebacks or clawbacks for lead reclassification under Section 4.4; and (e) Agent's full compliance with Section 9.4 (Return and Deletion of Property). The Team may withhold disbursement pending Agent's compliance with Section 9.4.

11. Zillow Flex Monitoring

Agent acknowledges that Zillow Flex program data and conversion metrics are monitored by the Team and the Brokerage on a continuous basis. Performance below program minimums may result in suspension from Flex lead distribution, reassignment of active leads, restriction of pending claims, or removal from the Team. Agent further acknowledges that Zillow Group, Inc. sets and may modify the Flex program rules unilaterally, and that nothing in this Agreement entitles Agent to a guaranteed volume of Flex leads.

12. Remedies and Enforcement

12.1 Injunctive Relief. Agent acknowledges that any breach of Sections 7, 8, or 9 will cause the Team irreparable harm for which monetary damages alone are inadequate. The Team is therefore entitled to obtain temporary, preliminary, and permanent injunctive relief and specific performance, without the requirement to post a bond, in addition to any other remedies available at law or in equity.

12.2 Attorneys' Fees. In any action arising out of or relating to this Agreement, the prevailing Party is entitled to recover its reasonable attorneys' fees, expert fees, and costs.

12.3 Cumulative Remedies. The remedies in this Agreement are cumulative and not exclusive of any other remedies available at law or in equity.

13. General Provisions

13.1 SURVIVAL

Sections 7 (Branding/IP), 8 (Confidentiality and Trade Secrets), 9 (Lead Ownership, Non-Solicit, Non-Recruitment), 10 (Termination and Payouts), 12 (Remedies), and 13 (General Provisions) survive termination or expiration of this Agreement.

13.2 SEVERABILITY AND BLUE-PENCIL

If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, overbroad, or unenforceable, the Parties expressly authorize the court to modify, reform, or blue-pencil the provision to the minimum extent necessary to render it enforceable, consistent with O.C.G.A. § 13-8-53(d) and other applicable law. The remaining provisions of this Agreement remain in full force and effect.

13.3 GOVERNING LAW AND VENUE

This Agreement is governed by the laws of the State of Georgia, without regard to its conflict of laws principles. The exclusive venue for any dispute arising out of or relating to this Agreement is the state or federal courts located in Columbia County, Georgia, and each Party consents to personal jurisdiction in those courts and waives any objection to venue.

13.4 ENTIRE AGREEMENT

This Agreement, together with Schedule A (Pre-Existing Sphere List) and any other schedules, exhibits, and addenda incorporated by reference, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior agreements, understandings, or representations, written or oral. Any modification must be in writing and signed by both Parties, except for prospective compensation adjustments made under Section 4.5.

13.5 ASSIGNMENT

Agent may not assign this Agreement or any rights hereunder. The Team may assign this Agreement to a successor entity, affiliated brokerage, or purchaser of substantially all of the Team's assets.

13.6 WAIVER

No waiver of any provision of this Agreement is effective unless in writing and signed by the waiving Party. A waiver of any breach is not a waiver of any subsequent breach.

13.7 NOTICES

All notices must be in writing and are deemed given upon (a) personal delivery, (b) the second business day after deposit with a recognized overnight courier, or (c) the date of email transmission to the Party's last known email address with confirmation of delivery.

13.8 INDEPENDENT COUNSEL

Agent acknowledges that Agent has had the opportunity to review this Agreement with independent legal counsel of Agent's choice and is signing it voluntarily and with full understanding of its terms.

13.9 NO EMPLOYMENT RELATIONSHIP

Nothing in this Agreement creates an employer-employee, partnership, or joint venture relationship between the Parties. Agent is and remains an independent contractor at all times.

13.10 COUNTERPARTS AND ELECTRONIC SIGNATURE

This Agreement may be signed in counterparts, each of which is deemed an original and all of which together constitute one agreement. Signatures delivered electronically (including via DocuSign, PDF, or similar method) are valid and binding.

14. ACKNOWLEDGMENTS AND SIGNATURES

By signing below, the Parties acknowledge they have read, understood, and agree to be bound by this Agreement, including the restrictive covenants in Sections 7, 8, and 9, which Agent confirms are reasonable and supported by valuable consideration. Agent further acknowledges that Schedule A (Pre-Existing Sphere List) has been completed and attached as of the Effective Date.

AGENT

Signature: _____

Printed Name: _____

Date: _____

TEAM LEAD

Signature: _____

Printed Name: Noah McBride

Title: Team Lead, The McBride Team at CENTURY 21 Magnolia

Date: _____

BROKER OF RECORD

Signature: _____

Printed Name: Noah McBride

Title: Broker, CENTURY 21 Magnolia

Date: _____

Guiding you home.